

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Gsovski	Team: Team # 6	CCRB Case #: 201303178	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 03/29/2013 3:39 PM	Location of Incident: § 87(2)(b) and the 5th Precinct Station House.	18 Mo. SOL 9/29/2014	Precinct: 05
Date/Time CV Reported Mon, 04/22/2013 9:02 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/22/2013 9:02 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Patrick Thompson	10379	942611	005 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Erin Hughes	00000	923966	005 PCT
2. POM Timothy Earley	31190	932589	005 PCT
3. POM James Franklin	26479	945732	005 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Patrick Thompson	Discourtesy: PO Patrick Thompson spoke discourteously to § 87(2)(b) in front of § 87(2)(b)	A . Substantiated
B . POM Patrick Thompson	Force: PO Patrick Thompson used physical force against § 87(2)(b) in the 5th Precinct Station House.	B . Unsubstantiated

Case Summary

On April 22, 2013, § 87(2)(b) called the Civilian Complaint Review Board (CCRB) and filed the following complaint over the telephone (encl. 2A-2B).

On March 29, 2013, at approximately 3:39 p.m., § 87(2)(b) was arrested at § 87(2)(b) in Manhattan by PO Patrick Thompson of the 5th Precinct for § 87(2)(a) 160.50. The following allegations resulted from this incident:

Allegation A: Discourtesy – PO Patrick Thompson spoke discourteously to § 87(2)(b) in front of § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b), it is therefore recommended that **Allegation A be substantiated.**

Allegation B: Force – PO Patrick Thompson used physical force against § 87(2)(b) in the 5th Precinct Station House.

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation B be unsubstantiated.**

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a black male who § 87(2)(b) and has dyed yellow hair and brown eyes. At the time of the incident, he was § 87(2)(b) (Encl. 4A).

Arrest Photograph:

The arrest photograph of § 87(2)(b) does not display § 87(2)(b) with any visible injuries on his face (encl. 13).

CCRB Statement:

On June 7, 2013, § 87(2)(b) was interviewed at the CCRB. § 87(2)(g)

On March 29, 2013 at what the investigation determined to be 3:39 p.m., § 87(2)(b) was standing watch over a table selling sunglasses that his employer had vacated to talk to another employee. This table was located near the intersection of § 87(2)(b) and § 87(2)(b) in Manhattan, in front of a number of jewelry stores. As § 87(2)(b) spoke to a potential customer, a man in civilian clothes (identified by the CCRB as PO Patrick Thompson of the 5th Precinct) approached him from outside of his view, either from the side or the back and asked him if he had a license to vend in that location. § 87(2)(b) said that he did, turned around and saw PO Thompson standing in front of a yellow vehicle, possibly a taxi. PO Thompson identified himself as a police officer by showing his badge, walked around to the front of the table and then was joined by a second officer in plainclothes (identified by the CCRB as PO James Franklin also from the 5th Precinct), who

together with PO Thompson took measurements of § 87(2)(b)'s table. § 87(2)(b) was familiar with PO Franklin, who had issued him a ticket earlier in the day for vending outside designated areas. § 87(2)(b) stated that the officers did not have to ticket him again because he was not selling anything, but did not receive a response to this remark.

PO Thompson then moved the table back, against § 87(2)(b)'s body, which was at the curb of the street. § 87(2)(b) then pushed the table back against PO Thompson. PO Thompson said "you animals." § 87(2)(b) asked rhetorically if he was an animal and PO Thompson dared him to "say one more thing." § 87(2)(b) responded by saying that there would be a revolution against the police because of their bad behavior and that PO Thompson would be the first one that he would get.

PO Thompson grabbed one of § 87(2)(b)'s arms, pulled it behind his back, and placed him roughly against the car's hood, face first saying, "This is what we do to animals," or "you're going down like an animal." He was then placed in the yellow taxi cab and driven to the stationhouse. § 87(2)(b) said that he was very upset at the time of arrest as a result of the officers' conduct, but did not recall moving his hands while being handcuffed. § 87(2)(b) did not know where PO Franklin was during his arrest.

§ 87(2)(b) said that while there were many people present at the scene, due to it being afternoon on § 87(2)(b) he could not provide the identifying information for any witnesses. He did not say specifically whether or not his employer had returned by that point.

When they arrived at the 5th Precinct station house, § 87(2)(b) was taken out of the car and PO Thompson yanked him along, by short, strong yanks on his handcuffs' chain. This continued until § 87(2)(b) was yanked so hard he fell down to the floor in the entrance to the stationhouse, in view of several police officers, including the desk sergeant on duty (a white female in a white shirt uniform identified by the investigation as Lt. Erin Hughes). § 87(2)(b) asked PO Thompson if he was going to beat him down and PO Thompson said "Okay, I'll take care of you." Other officers then pushed PO Thompson away and picked § 87(2)(b) up and led him to his cell. § 87(2)(b) said he did not remember enough to identify these officers in any way.

§ 87(2)(b) waited for approximately four to five hours in the precinct holding cell. § 87(2)(b) requested medical attention three or four times starting from when he was brought to the holding cell. He did so for chest pains that began as he was transported to the station house, but was rebuffed. At one point, an unidentified officer came to tell him that if he received medical attention it would substantially delay his release. Otherwise, § 87(2)(b) could not recall any details about the officers that he requested medical attention from. After he arrived at the holding cells, § 87(2)(b) started praying and singing songs. He said that PO Thompson did not come back to the holding cells, that it was two other officers who took him to central booking. § 87(2)(b) said that he did not speak to the other officers about what happened during the incident. § 87(2)(b) said that he told the officers he was feeling nauseous, lightheaded and that he was going to pass out, as a result of having a serious medical condition and not taking his medication. Immediately afterwards, an officer told him that he would be transferred to central booking, and if he wanted to get through the process quickly, he should say that he did not have a medical condition. § 87(2)(b) did not mention his medical condition at central booking because he wanted to get out of custody as soon as possible.

Shortly after his last conversation with the officers, however, § 87(2)(b) was removed from the holding cell and transported to another location where he was brought before a judge, charged, and released. § 87(2)(b) said he sustained no physical injuries as a result of this incident and did not seek medical treatment after leaving custody for injuries sustained during this incident.

NYPD Statements:

Subject Officer: PO PATRICK THOMPSON

- PO Thompson is a white male who stands § 87(2)(b) and has blond hair and brown eyes. He was § 87(2)(b) old at the time of the incident.
- On March 29, 2013, PO Thompson was assigned to 5th Precinct anti-crime, partnered with PO Timothy Earley and PO James Franklin working from 12:00 p.m. to 8:30 p.m. He used an unmarked car disguised as a yellow taxicab and was dressed in plainclothes. He could not recall the exact clothes he was wearing or whether or not he was wearing a hat (encl. 6E).

Memo Book:

At 3:30 p.m., PO Thompson stopped one male at § 87(2)(b). At 3:39 p.m., there was one male under arrest at § 87(2)(b). The defendant hit PO Thompson with a table and stated “Fuck you, fat fuck. If you touch me, I will fuck you up.” The defendant also resisted being handcuffed. This defendant was § 87(2)(b) date of birth: § 87(2)(b), whose residence was: § 87(2)(b) Brooklyn, New York, 11208. PO Thompson then transported § 87(2)(b) to the 5th Precinct station house in an unmarked taxi. When they arrived, § 87(2)(b) said, “O.K. boys, can I just get a summons and go home?” At 7:23 p.m., PO Thompson issued three vouchers for § 87(2)(b)’s property seized after the arrest. At 8:00 p.m. § 87(2)(b) was transferred to Manhattan Central Booking (encl. 6A-6D).

Arrest Report:

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Statement:

On June 25, 2013, PO Thompson provided a formal statement to the CCRB (encl. 6F-6G). The following is that statement.

On March 29, 2013, PO Thompson was performing street vendor license checks on § 87(2)(b), to make sure they were vending within their designated areas. PO Thompson approached § 87(2)(b)’s table and asked to see his license, which § 87(2)(b) provided. PO Thompson told § 87(2)(b) that his license was not the correct license to be vending on § 87(2)(b) and that he would be issued a summons.

PO Thompson then moved to measure distance of the table from the nearest door with a tape measure, which he placed on the corner of the table, and then turned to hand the other corner to one of his partners. PO Thompson said he did not move the table in any way as he did this.

As he turned his back to § 87(2)(b) PO Thompson felt the table slam into his back. PO Thompson told § 87(2)(b) that he was under arrest and told him to put his hands behind his back. § 87(2)(b) said, “Fuck you, you fat fuck. If you touch me, I will fuck you up,” and did not then turn around and place his hands behind his back. PO Thompson moved to handcuff § 87(2)(b) who, refusing to be handcuffed, flailed his arms and pushed PO Thompson back. PO Thompson said that § 87(2)(b) used profanity at other points in a rambling fashion, but could not recall any other specific examples other than “Fuck you, you fat fuck. If you touch me, I will fuck you up.”

At this point, in the middle of several orders to stop resisting, which § 87(2)(b) refused, PO Thompson told § 87(2)(b) “You’re acting like an animal.” PO Thompson said this because § 87(2)(b) was acting crazy, refusing all orders he was making while cursing and screaming. PO Thompson did not remember definitively how many times he called § 87(2)(b) an animal, but he said he believed that the aforementioned period during the incident was the only time he called § 87(2)(b) an animal or likened his behavior to an animal.

PO Thompson placed § 87(2)(b) under arrest, by first grabbing one of § 87(2)(b)’s arms. When § 87(2)(b) then spun in circles, keeping his other hand free, then PO Thompson grabbed § 87(2)(b)’s body, turned it towards the taxi, pushed § 87(2)(b) against the taxi and then pulled § 87(2)(b)’s arms behind his back. As § 87(2)(b) was being placed inside the vehicle, § 87(2)(b) was saying that the revolution was coming, that he hoped someone would kill PO Thompson and that PO Thompson was on § 87(2)(b)’s list. PO Thompson said that from the time § 87(2)(b) was told he was under arrest to the time he was placed in the police vehicle he did not comply with any orders.

PO Thompson transported § 87(2)(b) to the 5th Precinct station house. Once § 87(2)(b) arrived at the station house, he asked if he could get a summons and leave, and became much more cooperative. He was not screaming at this time and offered no physical resistance to being moved inside the station house. Once inside the station house and in front of the desk in reception, § 87(2)(b) began screaming again. PO Thompson did not remember the exact content of § 87(2)(b)’s remarks, except that they were protesting his arrest. PO Thompson said that § 87(2)(b) did not fall to the floor. PO Thompson said that § 87(2)(b) had no apparent physical injuries at this point during the incident, did not complain of any injuries, including chest pains, and at no point during the incident did § 87(2)(b) request medical attention from him.

Witness Officer: LT. ERIN HUGHES

- *Lt. Hughes is a white female who stands § 87(2)(b). She has black hair, blue eyes and was § 87(2)(b) old on the date of the incident.*
- *On March 29, 2013, Lt. Hughes was assigned as a desk officer in the 5th Precinct station house. She worked from 2:45 p.m. to 11:30 p.m. She was dressed in uniform and did not have a partner or use a vehicle at any point in her tour (encl. 7A-7B)*

Memo Book:

On March 29, 2013, Lt. Hughes was assigned as desk officer in the 5th Precinct from between 2:45 p.m. to 11:30 p.m (encl. 7A-7B).

5th Precinct Command Log:

On March 29, 2013, Lt. Hughes wrote in the command log that at 3:50 p.m., § 87(2)(b) was brought into the precinct station house subsequent to being arrested in front of § 87(2)(b)

for § 87(2)(a) 160.50. His physical/mental condition was described as “irate.” At 6:30 p.m., § 87(2)(b) was transferred to Manhattan Central Booking in RMP #3833 (encl. 10).

CCRB Interview:

On June 28, 2013, Lt. Erin Hughes was interviewed at the CCRB (encl. 7D). The following is her statement.

On March 29, 2013 at approximately 3:30 p.m., Lt. Hughes was stationed at the desk of the 5th Precinct. PO Thompson brought in § 87(2)(b) pursuant to an arrest for § 87(2)(b). Lt. Hughes said that PO Franklin and PO Earley may have been there as well. § 87(2)(b) walked to the desk under his own power, being guided by PO Thompson in a manner that Lt. Hughes could not recall. § 87(2)(b) was making angry statements to several of the officers present, including PO Thompson and Lt. Hughes, that he was angry at being arrested, angry at his treatment and that the officers took his money. Lt. Hughes could not recall these statements specifically. Lt. Hughes entered the arrest into the command log and PO Thompson transported § 87(2)(b) to the holding cells. Lt. Hughes said she did not recall seeing PO Thompson lead § 87(2)(b) by the handcuffs anywhere, but that PO Thompson may have done so from the desk to the holding cells.

Lt. Hughes said that § 87(2)(b)'s body did not make contact with the floor of the station house. Lt. Hughes said that § 87(2)(b) did not at any point say he was in pain, complain of any injuries, or request an ambulance. Lt. Hughes said she did not see any visible injuries on him. Lt. Hughes said that she didn't recall seeing § 87(2)(b) resisting in any way.

Witness Officer: PO JAMES FRANKLIN

- PO Franklin is a white male who is § 87(2)(b) and has blond hair and green eyes. He was § 87(2)(b) old on the day of the incident.
- On March 29, 2013, PO Franklin worked from 12:00 p.m. to 11:35 p.m. He was assigned to 5th Precinct anti-crime and partnered with PO Earley and PO Thompson. He was dressed in plainclothes and was assigned a vehicle but worked mostly on foot in Chinatown monitoring street peddlers and local conditions (encl.8D).

Memo Book:

On March 29, 2013, at approximately 3:39 p.m. PO Franklin assisted PO Thompson make one arrest at § 87(2)(b) and transport the prisoner back to the stationhouse (encl. 8A-8C).

CCRB Statement:

On July 11, 2013, PO Franklin was interviewed at the CCRB (encl. 8E). He provided the following statement.

On March 29, 2013, at approximately 3:39 p.m., PO Franklin was assisting PO Thompson in writing a ticket for § 87(2)(b) in front of § 87(2)(b) for § 87(2)(b). § 87(2)(g) PO Franklin did not hear PO Thompson indicate to § 87(2)(b) that he was an “animal” in any context at any point.

After PO Thompson placed § 87(2)(b) in the unmarked taxi cab the officers were using as transport, PO Franklin walked back to the 5th Precinct station house. PO Franklin could not remember if any other officers were present in the car. When he arrived at the station house, PO

Franklin observed PO Thompson search § 87(2)(b) and fill out § 87(2)(b)'s pedigree information at the front desk. PO Franklin could not remember who else was present or who the desk officer on duty was. PO Franklin did not see § 87(2)(b) on the floor at this or any other time. PO Franklin observed this as he passed by the desk for a period of approximately ten seconds. PO Franklin did not see or hear about § 87(2)(b) requesting medical attention while in the holding cells.

Witness Officer: PO TIMOTHY EARLEY

- PO Earley is a white male, who stands § 87(2)(b) and has grey hair and blue eyes. On the date of the incident he was § 87(2)(b) old.
- On March 29, 2013, PO Earley was assigned to conditions. He worked from 12:00 p.m. to 8:35 p.m. partnered with PO Thomas and PO Franklin in plainclothes, utilizing an unmarked yellow taxi cab (encl. 9E).

Memo Book:

At 3:39 p.m. on March 29, 2013, PO Thompson and PO Earley were transporting an arrested individual, § 87(2)(b) back to the station house, who had been summonsed for § 87(2)(b) only to then push a table into PO Thompson and scream "Fuck you you fat fuck. If you touch me, I'll fuck you up," and then flailed his arms in an attempt to avoid being handcuffed. § 87(2)(b) was transported to the station house in an unmarked yellow cab and upon his arrival at the stationhouse, asked the officers "Come on, boys, can't I just get a summons so I can go home?" At 8:35 p.m., PO Earley went off duty (encl. 9A-9D).

CCRB Statement:

On August 1, 2013, PO Earley was interviewed at the CCRB (encl. 9F). The following was his statement.

On March 29, 2013 at approximately 3:39 p.m. PO Earley was driving the yellow unmarked taxi that he, PO Thompson and PO Franklin were using. As PO Thompson approached § 87(2)(b)'s table to measure the distance from the table to the nearest door, § 87(2)(b) pushed the table into him. PO Thompson told § 87(2)(b) that he was under arrest and to turn around, § 87(2)(b) responded by screaming, "Fuck you you fat fuck. If you touch me, I'll fuck you up." PO Thompson placed § 87(2)(b) under arrest by pulling § 87(2)(b)'s hands behind his back and bracing him against the car to handcuff him. § 87(2)(b) moved his body away from PO Thompson as he attempted to handcuff him. At this point, § 87(2)(b)'s chest made contact with the hood of the car as a result of Mr. Thompson pushing him into the vehicle to brace him. § 87(2)(b) was then placed in the car and PO Earley and PO Thompson then drove him to the stationhouse.

PO Earley said that at no point during the arrest did he hear PO Thompson call § 87(2)(b) an "animal" or say that he was "acting like an animal."

PO Earley said that when he and PO Thompson arrived at the 5th Precinct station house, as § 87(2)(b) exited the car he asked if he could have his summons and leave. PO Thompson told him he had to go inside the station house. § 87(2)(b) was unhappy with this development, but did not throw himself on the floor or make any other attempt at resisting being moved to the station house. § 87(2)(b) also did not fall to the floor at any point outside the station house. PO Earley said that the only motion he could see PO Thompson make to guide § 87(2)(b) inside was holding him by the arm. PO Earley said that nothing struck him as unusual about § 87(2)(b)'s trip into the station house. PO Earley remained outside the station house as PO Thompson guided § 87(2)(b)

inside the station house, waiting for PO Franklin to return to the station house on foot before resuming patrol.

NYPD Documents

Arrest for Incident Disposition:

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- On October 18, 2013, the office of New York City Comptroller stated that § 87(2)(b) has not filed any notices of claim regarding the incident on March 29, 2013 (encl.17E).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- § 87(2)(b) has filed the following CCRB complaints:
 - § 87(2)(b)

Subject Officer CCRB History

- PO Patrick Thompson has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 1A).

Conclusion

Identification of Subject Officer

PO Thompson acknowledged making the statement § 87(2)(b) alleged in Allegation A. § 87(2)(b) stated that the officer who used force against him in the 5th Precinct station house was the same officer who used discourteous language towards him in allegation A. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Discourtesy: PO Patrick Thompson spoke discourteously to § 87(2)(b) in front of § 87(2)(b)

It is undisputed that PO Thompson referred to § 87(2)(b) as “an animal” in front of § 87(2)(b) after § 87(2)(b) pushed a table into PO Thompson. § 87(2)(b) stated that PO Thompson reacted by saying “you animals,” and then later as he was pushed up against the car, “this is what we do to animals,” and “you’re going down like an animal.” PO Thompson only specifically recalled saying that § 87(2)(b) was “acting like an animal” in response to his behavior, but did not recall whether or not he called him “an animal” more times in front of § 87(2)(b).

NYPD Patrol Guide Procedure 203-09 states NYPD officers are required to be “courteous and respectful” in contact with the public (encl. i). The exception to this is outlined in *PD v. Jean-Mary*, (encl. iv-xii), which states that “profane language made for emphasis as a means of ensuring citizens’ cooperation with law enforcement orders are not misconduct (encl. xi).”

§ 87(2)(g)

, it is therefore recommended that **Allegation A be substantiated.**

Allegation B: Force: PO Patrick Thompson used physical force against § 87(2)(b) in the 5th Precinct Station house.

§ 87(2)(g)

§ 87(2)(b) alleged that PO Thompson jerked him to the ground by his handcuffs. The officers identified by the investigation as present for this portion of the incident, PO Thompson, PO Earley and Lt. Hughes stated that while § 87(2)(b) was irate and offering verbal resistance, § 87(2)(b) offered no physical resistance and was not placed on the ground by PO Thompson. Both officers said that § 87(2)(b) was not on the ground at any point while in the station house. PO Franklin, who stated he was present for approximately ten seconds of this portion of the incident, said that he did not observe PO Thompson use physical force against § 87(2)(b) or observe § 87(2)(b) on the ground. § 87(2)(b) did not allege that this use of physical force injured him, § 87(2)(g).

It is therefore recommended that **Allegation B be unsubstantiated.**

Team: 6

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date